

Court No. - 39

Case :- WRIT - C No. - 10132 of 2025

Petitioner :- Saurabh Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saumitra Anand, Shishir Singh Yadav

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. The petitioner was served with two provisional notices dated 19.06.2023 and 23.06.2023. When the petitioner raised an objection with regard to the two notices, the Electricity Department served the petitioner with an order dated 20.10.2023. The petitioner thereafter objected to that order and, therefore, the matter apparently had been sent to a particular Committee of the Electricity Department which is still seized of the matter.

2. Learned counsel for the Electricity Department states that very expeditiously the matter would be decided. However learned counsel for the petitioner states that instead of deciding the matter, the Committee had only adjourned the matter on the previous dates and now on 25.11.2024 a demand notice had also been sent which has been annexed at page no. 96 of the writ petition.

3. Learned counsel appearing for the Electricity Department may take instructions in the matter.

4. Put up this case on **16.04.2025 as fresh.**

5. When the case is listed next, the name of Sri Paras Nath Rai be shown in the cause list as learned counsel for the Electricity Department.

Order Date :- 8.4.2025

M.S. Ansari

(Dr. Y.K. Srivastava, J.) (Siddhartha Varma, J.)

Court No. - 40

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Saumitra Anand, Shishir Singh Yadav

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Supplementary affidavit filed on behalf of the petitioner be kept on record, and a copy of the same is being handed over to the counsel appearing on behalf of the respondents.

Counsel appearing for the respondents is directed to take further instructions in the matter.

List this matter on 24.04.2025 as fresh.

Order Date :- 16.4.2025

Shahroz

(Dr. Y.K. Srivastava, J.) (Shekhar B. Saraf, J.)

Court No. - 40

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Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard Sri H.N. Singh, learned Senior Counsel appearing along with learned counsel, Sri Saumitra Anand and Sri Shishir Singh Yadav, in support of this petition and Sri P.N. Rai, learned counsel appearing on behalf of the Electricity Department.

This is a writ petition under Article 226 of the Constitution of India, wherein the following primary prayers have been prayed for, by the writ petitioner:

"I. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 19.06.2023 purportedly passed under Section 126 of the Electricity Act read with the Electricity Supply Code (Annexure-1 to the writ petition).

II. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 23.06.2023 also purportedly issued under Section 126 of the Electricity Act read with the Electricity Supply Code (Annexure-2 to the writ petition).

III. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 20.10.2023 passed by the respondent no. 4 vide Patrank No. 5865/V.V.Kh./bah whereby a purported final assessment notice had been issued upon the petitioner (Annexure-3 to the writ petition).

IV. Issue a writ, order or direction in the nature of mandamus directing the Respondents not to take any coercive action against the Petitioner and also restrain them from making any recovery from the Petitioner in pursuance of the impugned orders."

It appears that after passing of the orders dated 19.06.2023 and 23.06.2023, a demand notice dated 25.11.2024, was also issued. The petitioner, aggrieved by the aforesaid, has approached this Court and has not gone in appeal, as provided under the statute

under Section 127 of the Electricity Act. The reasons cited by the petitioner for non-filing of the appeal is that a deposit of 50% of the amount, was required to be paid for filing of the said appeal.

Having regard to the aforesaid facts and circumstances and upon consideration of the arguments advanced by both the parties, we are of the view that the impugned order and the demand notice be stayed for a limited period, with a direction given upon the petitioner to file a fresh representation before the authority concerned viz. the authority who has passed the assessment orders. It is directed that upon such a representation being made by the petitioner, within a period of one week from date, the authority concerned shall consider the representation of the petitioner and pass a fresh order after granting proper opportunity of hearing to the petitioner. The order so passed, essentially, should be a reasoned one and that order shall be treated as being a final assessment made, with respect to the petitioner.

The petitioner is directed to deposit 25% of the amount mentioned in the demand notice, before the authority concerned, for the matter being heard *de novo*. This amount of 25% shall be deposited along with the fresh representation being made by the petitioner. The authority concerned shall complete the entire process within a period of six weeks from date.

In the meantime, no coercive measure shall be taken against the petitioner.

With the above observations, this writ petition is **disposed of**.

Order Date :- 24.4.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Shekhar B. Saraf, J.]